

In,

The court of Deputy Collector and Reforins

Patna city

Mutation Appeal No. of 2025-26

In the matter of an application U/S 7
Of Bihar Mutation Act 2011

AND

In the matter of

1. **Mukesh Jaiswal** Son of Sri Ganga Prasad Choudhary Resident of -
Pallvi Coloney, Bazar Samiti, Water plant, behind Kela Mandi,
Sandalpur, P.O- Mahendru, P.S- Bahadur pur, District-Patna
 2. **Smt. Malti Devi wife of Sri Ganga Prasad Choudhary** Resident of
Basha, ward no.08, Basha, Supaul, Basha Bihar, Pin-Code 852131
 3. **Rakesh Roushan** son of Ganga Prasad Choudhary Resident of Prince
Steel Industrial, R. K. Avenue, Nala Road, in front of Mishra Opticals
Kadam Kuan, District-Patna -----
- Appellants

Versus

1. Circle officer, Patna City, District-Patna
 2. **Dheeraj Kumar Singh** son of Sri Abhimanyu Singh Resident of
Khalpura, Gultenganj, P.O- Khalpura, Chapra, District- Saran ----
- Respondents

The above-named appellants
beg to submit is as follows: -

Most respectfully Sheweth: -

1. That, instant Mutation appeal has been preferred by the appellants
to set-aside the impugned Order dated 08.12.2025 passed by

*learned Circle office, Patna Sadar, at present Circle Office- Patna City under Mutation Case no.836 /year 2025-26 which arbitrary and illegal manner without consider the real fact and without inquiry of Jamabandi record, as well as right, title and possession over the property which is jointly recorded in the name of Annand Kumar son of Ram Raghubir Prasad Singh with regard to property bearing Thana no. 2/11, Mauza- Sandalpur, Circle Office, Patna City, Khata no. 188, Khesra No. 234 Area of 5.79793 in record of right Register-II under **Jamabandi no.3740/1, Bhag-34, Page no. 4076** being recorded owner and Possessor of the property Annand Kumar son of Sri Ram Raghubir Prasad Singh had been sold out the property with regard to Area of 1248 Sq. feet i.e., 2.86 decimal Khata no.188, Khesra no. 234-part , Circle no. 50, New Holding No. 84-C/1, Property no. 2172858 to the appellants through register deed of sale dated 20.06.2025. Deed no.10176 handed over actual possession which constructed Godam and upper roofed covered under Corrugated Sheet, further submitted that after purchased the property the appellants file Mutation Case no. 836/year 2025-26 before the court of Circle Officer, Patna City, but the learned Circle Officer, Patna City without consider the facts and law the rejected the Mutation application on the ground :-*

ABEDIT BHUMI UTRAADHIKARI /BATWARA SE SAMBANDHIT HAI, ABEDAN MAI ANKIT BHUMI KI ENQUIRY KARAYA, KARAMCHARI NE PRATIBADIT KIYA HAI SABHI FARIKO KI AAPSI SAHAMATI HATU BHUMI SE SAMBANDIT MOOL KAGJAT KEWALA, KHATIYAN, BHU-

LAGAN RASID, BATWARA BASAWALI AFFIDAVIT, NO OBJECTION ADHAR-CARD NAHI HAI ABEDAK KE DAWARA KAGJAT UPLABDH NAHI KARAYA GAYA, KAGJAT KE AABABH MAI ABADAN REJECTE KI JATI HAI

*That, with dissatisfied of the impugned Order dated 08.12.2025 passed in **Mutation Case no.836/year 2025-26** the appellants preferred this Mutation appeal before this court.*

2. *That, the appellants have not filed any appeal before any court against the Order dated 08.12.2025 passed by the learned Circle Officer, Patna City under **Mutation case no. 836/year 2025-26**.*
3. *That, with respect to submitted that the property in suit bearing Thana no. 11 Tauzi no. 303, Khata no.188, Khesra no. 234-part, Municipal Plot no. 2924, Area of 28 decimal had purchased by Smt. Deopati Kuwanr wife of Late Ram Bujhawan Singh through two register sale deed dated 18.03.1966 Deed no. 1860 from Jugeswar Choudhary son of Bhola Choudhary and through register deed of sale dated 14.04.1966 Deed no. 2263 from Heera Lal Mahto son of Budhan Mahto after purchased the property being rightful owner an possessor name of Smt. Deopati Kuar is recorded in record of right Register-II under **Jamabandi no. 388** she being owner paying Malguzari rent to state of Bihar under due and proper rent receipt.*
4. *That, with respect to further submitted that Smt. Deopati Kuwar wife of Ram Bujhawan Singh recorded owner sale the property through register deed of sale dated 05.11.1985 to Smt. Aananda*




Singh wife of Sri Balmiki prasad Singh with regard to Area of 2496 Sq. feet Khata no. 188, Khesra no. 234-part Municipal Plot no. 2924 and handed over actual possession to bonafide purchaser.

5. That, further submitted that rightful owner and possessor Smt. Aananda Singh wife of Sri Balmiki prasad Singh further executed Register Power of attorney deed no. 202 dated 31.05.1993 in favour of Sanjeev Kumar sing son of Sri Paras Nath Singh for sale the property and attorney holder transfer the property through register deed of sale to [1] Annand Kumar son of Sri Raghubir Prasad Singh [2] Smt. Sangita kumari wife of Sri Annand Kumar through register Deed of sale dated 14.10.1993 with regard to area of 2496 Sq. feet Khata no. 188, Khesra no. 234-part and handed over actual possession, further submitted that being rightful owner and possessor of the property for mutate the name [1] Annand Kumar son of Sri Raghubir Prasad Singh [2] Smt. Sangita Kumari wife of Sri Annand Kumar file Mutation Case no. 604/year 1993-94 after hearing the matter the learned Circle Officer, Patna Sadar passed the order in favour of [1] Annand Kumar son of Sri Raghubir Prasad Singh [2] Smt. Sangita Kumari wife of Sri Annand Kumar they started to paying Malguzari rent to state of Bihar under Jamabandi no. 3740/1 Bhag-34 Page no. 4076 due and proper rent receipt, it is further submitted that name of [1] Annand Kumar son of Sri Raghubir Prasad Singh [2] Smt. Sangita Kumari wife of Sri Annand Kumar is also recorded in record of **Patna Municipal Corporation** under Rent fixation Case no. 374/50 year 2017-18 and after due



enquiry of the physical possession name is recorded under property P.I.D no. 2172858 vide order dated 14.12.2017 .

6. That, it is submitted [1] Annand Kumar son of Sri Ram Raghubir Prasad Singh for transfer the property executed Register Power of attorney Dated 20.06.2025 Deed no. 1019 dated 05.12.2023 in favour of Sanjeev Kumar Singh son of Sri Paras Nath Singh for sale the property being attorney holder transfer the property through register deed of sale dated 20.06.2025 Deed no. 10176 to the appellants with regard to area of 1248 Sq. feet i.e., 2.86 decimal Khata no. 188, Khesra no. 234-part under constructed Godam which covered upper roof under corrugated sheet as well as covered under boundary wall there was also fixed iron gate,
7. That, after purchased the property through register deed of sale dated 20.06.2025 Deed no.10176 the appellants file Mutation Application Case no. 836/year 2025-26 before the circle Officer, Patna City but the learned Circle Officer, Patna City without consider the facts and law name of the vendor of the appellant is recorded Jamabandi no. 3740/1 Bhag-34 Page no. 4076 transfer the property through lawful valid register deed of sale.

That it is submitted that the appellants file all relevant documents as required before the Circle Officer, Patna City but without applying judicial mind and without perused the record of Register-II the appellants had purchased the property from

recorded owner rejected the Mutation Application Case No.836/Year 2025-26 vide order dated 08.12.2025.

8. That, with dissatisfied the impugned order passed by learned Circle officer, Patna City the appellant preferred this Mutation appeal before this court to set-aside the order dated 08.12.2025 passed in **Mutation Case no. 836/year 2025-26**

Being aggrieved and dissatisfied with the impugned order dated 08.12.2025 passed by learned Circle officer, Patna City in **Mutation Case no. 836/year 2025-26** the appellants beg to prefer this Mutation appeal on the following grounds amongst the others.

Grounds: -

- A. For that, impugned Order passed by the learned Court Circle Officer, Patna City is quite illegal and arbitrary manner the same is bad in law as well as on facts, which is not sustainable in law and fit to be set aside.
- B. For that, the Order of Learned Circle officer, Patna City is based on mere conjecture and surmises.
- C. For that, the learned Circle Officer, Patna City did not consider the law that name of the vendor is recorded in record of right Register-II under Jamabandi no. 3740/1 off-line record and also issued Malguzari rent year 1996-97 and On-line Jamabandi no. 3740/1, Bhag-34, Page no.

4076 over the property being rightful owner and possessor and recorded owner transfer part of the property with regard to area of 1248 sq. feet i.e., 2.86 decimal Khata no. 188, Khesra 234-part to the Appellants through lawful register deed of sale dated 20.06.2025 Deed no. 10176, but the learned Circle Officer, Patna City failed to consider these facts and passed impugned order rejected the Mutation application of the appellants.

Hence, it is, therefore prayed that your honour may be pleased to admit this mutation appeal after condoning the delay if any.

And /or

Call for the L.C.R of Mutation Order dated 08.12.2025 passed by learned Circle officer, Patna City in **Mutation case no. 836/year 2025-26** issue notice to the respondents after hearing Set-aside the impugned Order passed by the **learned Circle officer, Patna City vide Order dated 08.12.2025 in Mutation Case no. 836 /year 2025-26 for the ends of justice.**

And for which the appellants shall ever pray.

[Handwritten signature in red ink]
12/10/26

Mukesh Jaiswal

Ravah Rautphah

Hinda Raut

Verification

We, [1] **Mukesh Jaiswal** Son of Sri Ganga Prasad Choudhary Resident of -Pallvi Coloney, Bazar Samiti, Water plant, behind Kela Mandi, Sandalpur, P.O- Mahendru, P.S- Bahadur pur, District-Patna [2] **Smt. Malti Devi** wife of Sri Ganga Prasad Choudhary Resident of Basha, ward no.08, Basha, Supaul, Basha Bihar, Pin-Code 852131, [3] **Rakesh Roushan** son of Ganga Prasad Choudhary Resident of Prince Steel Industrial, R K Avaneue, Nala Road, in front of Mishra Opticals Kadam Kuan, District-Patna, do hereby declare that the contents of this Mutation appeal have been read over and explained to us in simple Hindi which is true and correct to the best of our knowledge and belief

Verified and sign on 12.01.2026 at 10.30.A.M at the premises of Patna city civil court.

[Signature]
Advocate
12-1-2026

Mukesh Jaiswal

Rakesh Roushan

हमारा ३रा

[Signature]
12/01/26

Certificate

I, prepared the grounds of this mutation appeal and all the grounds of this mutation appeal are the good grounds and the grounds which have been prepared by me shall be supported by me at the time of the argument.

[Signature]
Advocate



I, **Mukesh Jaiswal** Son of **Sri Ganga Prasad Choudhary** Resident of -
Pallvi Coloney, Bazar Samiti, Water plant, behind Kela Mandi,
Sandalpur, P.O- Mahendru, P.S- Bahadur pur, District-Patna do hereby
solemnly affirm and declare as follows: -

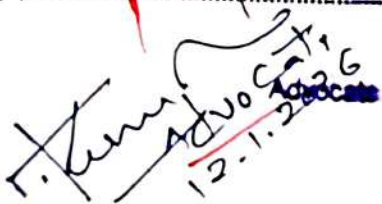
1. That, I am appellant no.1 in this case and I am well acquainted with the facts and circumstances of this case.
2. That the content of this Mutation Appeal along with this affidavit have been read over and explained to me in simple Hindi which is true and correct to the best of my knowledge and belief.

Verified and sign on 12.01.2026 at 10.30 A.M

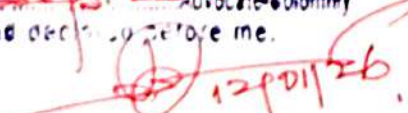
in the premises of Patna City Civil Court, Gaighat, Patna -7

I identify the Signature/L.T.I.
of the deponent/the executant, who has
have put his/her signature/LT
in my presence


Mukesh Jaiswal


12-1-2026

r/Smt. **Mukesh Jaiswal**
who is identified by Sri
Rakesh Kumar Advocate
affirmed and declared before me.


Dr. Rakesh Kumar
M.A. (Eco) LL.B. Ph.D. (PU)
Notary Public, Patna City (Bihar)



वकालतनामा



में (1) Mukesh Jaiswal son of Sri Ganga Pr.
Chaudhary Resident of Paliw Lohney
हमलोग Bazar Samiti, water plant, behind
Kela mandi, Samdalpur, P.O.-mahendran
P.S.-Bahadurpur, District-Patna
मनमोकिरान (2) Smt. Malti Devi wife of Sri
Ganga Prasad Chaudhary, Basha
चुमनमोकिरान ward n. 8, Supaul, Bihar
(3) Rakesh Roushani son of Sri Ganga
Prasad Chaudhary, R/o Prince Steel
Industrial, Nala Road, Kadamkuan
Dist Patna बनाम vs. Circle Officer
व-मोकदमे Mukesh Jaiswal and others मोकदमा नं० Patna city and
अदालत D.C.L.R, Patna City Mutation Appeal
2025-26
वोकरानां खबरगिरी व पैरवी मोकदमे मुस्कुर जहर व मतलब है इस मतलब को
सुखरज बरमबत अपने मासमियात :
(1) Pradeep Kumar Advocate
(2) Tushar Kaul Advocate

Mukesh Jaiswal

Rakesh Roushani

Malti Devi

सही

वाकलायाना	बाकलाय	बाकलाय
मोकरर अदाखत के	मोकरर करके मोकीर हू के	
मोखतारान	मोखतार	मोखतार

मोसकीन खाद एके अजबहा इस मोकदमन जो कुछ कोशिश व पैरवी करें वो सवाल वसफिया या वाजीदवी वा एकयालदावी वो सिन दाखिल करे और राजबन्दी वो पाटबंदी बटवारा पर हस्तख कर दो जो कागजात सबुत व खोराक गदाहान वो कमीसन दाखिल करे और दाखिल सुदे को वापस लेवे और जो रुपया जीस किसम वा मिसील करे खोराक गवाहान जरे कमीशन पर खचा बटवारा वो खरचा स्टाम्प बटवारा दाखिल करे बाद फाजील खरचा बटवारा जो फाजील निलामी दो रुपया लैन्ड अकीउजिशन वो चीफ बगमोर कीमत इस मोआयल स्टम्प दो रुपया मालीकाना बरामद कर और रुपया इजराय डिगरी वो दीगर किमीस का रुपया मखुनबे सिरिस्ते नजारत खाह यैक ही बरामद करे या जर डिगरी या दस्त व दस्त लेवे वो दरखास्त वसुलि दाखिल कर या दरखास्त इजराय डिगरी दाखिल करे वो डाक बोले या जरसम्पन मोजरा लेवे या दस्त व दस्त रुपया देवे या तसफिया करके किस्त बन्दी करे या दरखास्त वसुलि दाखिल करे या जिस किसम का दरखास्त जिस भजयूनक जिस वकत मुनासिब जाने दाखिल कर वो कार्रवाई

बकलाय
लाजमी मोनासिब जान करे वह सब साखले बरदाखले मारुकीन
मोखताराव
खुदहामनमोकिरान
या एक अजहा मिसन करदेजात को कायुल दो भजजुद है व
खुद मनमोकिर
वोकरलाव
होना इस वास्ते वह को लिखा दिया कि वकत पर काम आवे
मोखतार

Received, Vakalatnama from the executant and accepted
the same for own satisfaction, I hold no brief for other side.


12.1.2026

Pradeep Kumar "Advocate" Enrolment No. 804 /of 1990
Patna City Bar Association, Mobile No. 9835639669

Tushar Kaul 'Advocate' Enrolment no. 1232/2016
Patna City Bar Association, Mobile no.9934200106



19-Dec-2025



बिहार भूमि



अंचल अधिकारी का कार्यालय

Patna Sadar ,Patna

अस्वीकृति की सूचना

नामांतरण मुकदमा संख्या : 836 R27/ 2025 - 2026 /Patna Sadar

सर्वसाधारण को सूचित किया जाता है कि नामांतरण मुकदमा संख्या 836 R27/ 2025 - 2026 /Patna Sadar को अस्वीकृत किया जाता है

अस्वीकृत करने वाले का नाम - CHANDAN KUMAR(Circle Officer)

दिनांक(जिस दिन अस्वीकृत की गई) - 12/8/2025 7:05:10 PM

अस्वीकृत का कारण - आवेदित भूमि उत्तराधिकार/बटवारा से संबंधित है। आवेदन में अंकित प्रशगत भूमि की जाँच सम्बंधित राजस्व-कर्मचारी से कराई गई। जिनके द्वारा प्रतिवेदित किया गया है, कि सभी फरीकों की आपसी सहमती हेतु भूमि से संबंधित सभी मूल कागजात यथा- केवाला, खतियान, भूलगान रसीद, बटवारा शिड्यूल्ड, वंशावली (जिसमें बहन का भी नाम उल्लेखित हो), सभी फरीकों का स्वयं शपथ-पत्र, बहन का अनापत्ति प्रमाण-पत्र, सभी फरीकों का आधार कार्ड इत्यादी अपलोड नहीं की गई है। दी गई सुनवाई की निर्धारित तिथि बीत जाने के बाद भी आवेदक द्वारा उक्त साक्ष्य-कागजात उपलब्ध नहीं कराई गई। अतः उक्त कागजात के आभाव में प्रस्तावित दाखिल खारिज अस्वीकृत की जाती है।

मुकदमा संख्या 836 R27/ 2025 - 2026 /Patna Sadar का विवरण

आवेदक का नाम	अभिभावक का नाम	पता
MUKESH JAISWAL	GANGA PRASAD CHOUDHARY	BEHIND OF KELA MANDI SANDALPUR ROAD

से नामांतरण हेतु आवेदन (संख्या - 836) प्राप्त किया गया।

क्रेता का विवरण

क्रेता का नाम	अभिभावक का नाम	पता
MUKESH JAISWAL	GANGA PRASAD CHOUDHARY	PALLAVI COLONY BAZAR SAMITI, OLD WATER PLANT,BEHIND OF KELA MANDI ,SANDALPUR ROAD,PATNA 800006
MALTI DEVI	GANGA PRASAD CHOUDHARY	PALLAVI COLONY BAZAR SAMITI, OLD WATER PLANT,BEHIND OF KELA MANDI ,SANDALPUR ROAD,PATNA 800006

RAKESH ROUSHAN	GANGA PRASAD CHOUDHARY	PALLAVI COLONY BAZAR SAMITI, OLD WATER PLANT,BEHIND OF KELA MANDI ,SANDALPUR ROAD,PATNA 800006
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विक्रेता का विवरण

विक्रेता का नाम	अभिभावक का नाम	पता
ANAND KUMAR	RAM RAGHUBIR PRASAD SINGH	KUSUM KUNJ , WEST OF MAHMUD CHOWK , DAHIYAWAN, CHAPRA SOREN BIHAR 841301

भूमि का विवरण

मौजा: संदलपुर थाना : 2/11

खाता नम्बर	प्लॉट संख्या	रकबा	Area1	Area1_Unit
188	234	0 एकड़, 2.86 डिसमील, 0 हेक्टर	0	एकड़

अंचल अधिकारी

Patna Sadar ,Patna

भू-राजस्व विभाग पत्र संख्या



राजस्व एवं भूमि सुधार विभाग, बिहार

सरकार

प्रपत्र-XIV ख
(देखें नियम-10)

लगान रसीद

ऑनलाइन

Running Unique No.: 20122502152981134415
(Receipt No.)

Patna	अंचल :- Patna City
सदर :- सदरपुर	मौजा :- सदरपुर
जमाबंदी संख्या :- 3740/1	
मांग वर्तमान :- 34	
पृष्ठ संख्या :- 4076	मौजा/थाना संख्या :- 2/11
कंप्यूटरीकृत जमाबंदी संख्या :- 212140000159252	
जमाबंदी रयत का नाम :- ANAND KUMAR ,SANGITA SINGH	पता :- DAHIBHATTA CHHAPRA SHARAN , ,DAHIBHATTA
अभिभावक का नाम :- RAGHUVIR PRASAD SINGH,ANAND KUMAR SINGH	CHHAPRA SHARAN

खाता संख्या	खेसरा संख्या	रकबा/डिसमिल
188	234	0 एकड़ 5.79793 डिसमिल 0 हेक्टर

सालाना मांग(बकाया और वर्तमान) चालू वित्तीय वर्ष का

वित्तीय वर्ष	सालाना दर	बकाया	वर्तमान	सूद	कुल	अभियुक्ति(बकाया का वर्ष कब से कब तक)
जमाबंदी लगान	10.00	10.00	10.00	0.00	20.00	2024-2025 से 2025-2026
सेस(लगान का 50 प्रतिशत स्वास्थ्य सेस, 50 प्रतिशत शिक्षा सेस, 25 प्रतिशत रोड सेस एवं 20 प्रतिशत कृषि सेस)	14.50	14.50	14.50	0.00	30.00	2024-2025 से 2025-2026
कुल	24.50	24.50	24.50	0.00	50.00	2024-2025 से 2025-2026

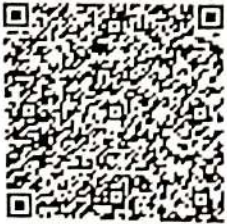
वसूली

वित्तीय वर्ष	बकाया के विरुद्ध वसूली	वर्तमान मांग के विरुद्ध कुल वसूली	कुल वसूली	अवशेष राशि(बकाया का वर्ष कब से कब तक)	अभियुक्ति
लगान	10.00	10.00	20.00	2024-2025 से 2025-2026	
सेस(लगान का 50 प्रतिशत स्वास्थ्य सेस, 50 प्रतिशत शिक्षा सेस, 25 प्रतिशत रोड सेस एवं 20 प्रतिशत कृषि सेस)	14.50	14.50	30.00	2024-2025 से 2025-2026	
कुल	24.50	24.50	50.00	2024-2025 से 2025-2026	

कुल बकाया-50.00

वसूल की गयी राशि शब्दों में- Fifty Rupees

तिथि- 21-12-2025



यह एक कम्प्यूटर जनित प्रति है।

किसी भी प्रकार की अशुद्धियों के लिए सम्बन्धित अंचलाधिकारी से संपर्क करें।

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